

Court No. - 21

Case :- WRIT - C No. - 3273 of 2018

Petitioner :- Ram Prakash @ Pappu Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Mr Mithilesh Kumar Tiwari

Counsel for Respondent :- C.S.C., Mr Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondents no. 4 & 5.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the impugned recovery citation dated 05.10.2017 issued by the respondent no. 3 for realization of a sum of Rs.3,18,655/- .

Facts giving rise to the dispute are that after checking the premises of the petitioner by the Inspector, Vigilance, first information report dated 05.03.2016 was lodged against him under Section 135A of the Electricity Act on the ground that he was running a 'Aata Chakki'. Provisional assessment bill dated 17.5.2016 for a sum of Rs.3,18,625.26 has been issued to the petitioner. Petitioner filed objection on 22.5.2016.

Learned counsel for the petitioner contends that objection filed by the petitioner to the provisional assessment is still pending before the respondent no. 5 for consideration and without making final assessment, directly demand notice dated 28.4.2017 for a sum of Rs.3,18,655/- has been issued against the petitioner. Learned counsel for the petitioner further contends that the respondent Power Corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

Sri Mahboob Ahmad, learned counsel for the respondents no. 4 & 5 fairly states that the respondent no. 5 will consider the objection filed by the petitioner to the provisional assessment and thereafter, raise final assessment bill.

We have considered the argument advanced by learned counsel for the parties and perused the record.

From a perusal of the provisional assessment notice dt.17.5.2016, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned recovery citation dated 05.10.2017 (annexure no. 6 to the writ petition) is hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objection of petitioner in the light of observations made in ***Ashok Kumar (supra)***.

Order Date :- 24.1.2018

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